

26PR00308 Matter of Michael Weissgerber Trust

County: sonoma

Division: Probate

Hearing date: 2026-06-26

Motion: Petition for Court Order Authorizing Transfer of Settlor's Property to Trust

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Petition for Court Order Authorizing Transfer of Settlor's Property to Trust

Tentative Ruling: The petition is DENIED in part and CONTINUED in part as set forth below.

As for the condominium at 810 Seventh Street #13, Santa Rosa, CA, the petition is DENIED. The Petitioner makes a well-supported and persuasive argument, both legally and equitably, for the relief sought. The obstacle to granting the request is the case of *Placencia v. Strazicich* (2019) 42 Cal.App.5th 730, 743, as modified on denial of reh'g (Dec. 23, 2019). That case holds that where a pour-over will gives property to a trust, and the property is not otherwise made part of the trust res, the property cannot be simply transferred to the trust without probate administration. Where this Court has relied on a pour over will to satisfy the statute of frauds requirement for a transfer to a trust of real property, there has been other evidence of the settlor's intent to hold the property in trust, such that it is otherwise made part of the trust res. Here the pour over will is offered to serve both purposes and falls squarely within the rule stated in *Placencia* that governs this Court. Whether a legislative fix to this very common problem can be sought or obtained is beyond the purview of this trial court, except to encourage such as in support of equity and the efficient distribution of decedent's estates.

As for the membership interest in the Odd Fellows Recreation Club, the petition, at paragraph 7, states that there is a schedule of trust assets that includes this membership interest. However, the schedule of trust assets is not presented. Therefore, this issue is CONTINUED to October 9, 2026 at 9:30 a.m. in Department 12 to allow the petitioner an opportunity to file and serve, at least seven (7) court days in advance of the continued hearing, a verified supplement that includes the missing schedule of trust assets. The petitioner must also cure the following notice defects:

Use of the DE-115 notice of hearing form is mandatory in the context of California Probate Code ("Prob C") §850 petitions. The petitioner has used the incorrect notice of hearing form here, the DE-120 form.

The notice of hearing does not include a description of the subject property, as required by Prob C §851(c)(1).

The Odd Fellows Recreation Club is entitled to notice pursuant to Prob C §851(a)(2). The petitioner should note that Prob C §851(a) requires service of the notice of hearing and a copy of the petition in the manner provided by California Code of Civil Procedure §413.10 et seq. (i.e. in the manner of a summons.)